

The Claremont City Council held a meeting on Wednesday, February 23, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the February 9, 2022, City Council meeting.

Roll call vote:

**Contois - yes
O’Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.**

MAYOR'S NOTES

- Congratulated the Stevens High School Bowling Team for winning the State Championship last Saturday
- Reminder that School Board Vote is coming up Tuesday, March 8
- Yesterday's Mayoral Roundtable, Commissioner Sheehan discussed the 10-year transportation plan and the hope is to go from 200 bridges on the Red List down to 80 bridges
- Recognized the passing of George Cacavarro, Jr., who was a Councilor and Mayor of the City of Claremont from 1983 to 1992
- We are looking for feedback on the City Manager's search by Monday, February 28, 8:00 a.m., claremontcmsearch@mrigov.com
- Today, Congresswoman Kuster was in Claremont to discuss workforce development. She met with some of the Councilors, and then they took a quick tour through the Chinburg property (Peterson building).

Charter Amendment Discussion

Assistant City Manager Mark Chase worked with City Clerk Gwen Melcher to determine the timeline for a potential Charter change. He contacted Attorney Shawn Tanguay regarding the timeline and the requirement for an employee to live in Claremont. Constitutionally, the City Manager cannot be required to live in Claremont. Unless there is a Special Election called for this vote, then the next possible election to put this on the ballot is the Primary on September 13, 2022. The cost to run a Special Election is about \$5,000.

Councilor Contois said that Claremont is a small city and the City Manager needs to be a part of the social fabric of the City and they should live within the City. Mr. MacLean talked about the City Manager recruitment and that having flexibility is the right way to go. This doesn't automatically mean that the person wouldn't live in the community.

There was a discussion that the pool of City Manager candidates is getting smaller. This would offer more flexibility. Finding housing in Claremont is difficult. The time to the Primary Election is very long, so it was suggested that the appointed person could be given a residency waiver.

Mr. Chase said the first step is for the Council to determine if a Charter amendment is necessary.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone that we amend the Charter to remove the residency requirement for the City Manager.

The language for the Charter amendment will be formalized before the public hearing.

Roll call vote:
Contois - no

O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 8-1.

Legislative Updates

Mayor Girard said that House Bill 50 Redistricting has been approved by the House and sent to the Senate. There is a potential for Claremont to lose some seats in the future. Claremont will move from District 5 to District 8 with Charlestown, Newport, down to Stoddard. The Congressional Seat 2 will stay the same. House Seat 2 has been added with Salem and Hampstead; Hampton has been removed.

Councilor Mooshian said that redistricting happens every 10 years. The takeaway is that Claremont would go from four seats to five, but would have to share some of those with other communities.

CITY MANAGER'S REPORT

General Remarks

Mr. MacLean talked about the continuing theme, "We Are All On the Same Team." The recycling report should be on the next agenda, as will the Class VI roads discussion. Also, we want to discuss developing a way of dealing with Class VI road requests.

Mr. MacLean asked Mark Brislin, Parks & Recreation Director/Facilities Director, and Bill Willette, Maintenance Supervisor, to give a roof project update.

Mr. Brislin said that Mr. Willette is a great asset to the City; he comes in at all hours when needed. He thanked him.

Mr. Willette said that Melanson came in today to do a quick fix on the Atrium roof. They screwed down the membrane and there was no cracking. This is to keep the wind from getting under it and hopefully, it will last for a few months. Mr. MacLean said this is part of a series of improvements that will come back in the CIP (Capital Improvements Plan). Mr. Willette said this should not cost over \$2,800. This is only one roof and there are four other roofs that are in need of repair. Mr. MacLean said it is important for the community to understand what we are facing with respect to our facilities and the money that will have to be spent going forward.

Mr. Willette said the Court roof is similar to the Atrium roof. Melanson looked at it and suggested hold off for now, because if something goes wrong, it could cause a big problem. Mr. MacLean said there is a good chance that we can use ARPA (American Rescue Plan Act) funds and that would be part of a package of capital improvement projects to come forward as part of the budget process.

Mr. MacLean said an RFQ (Request for Qualifications) for an engineering study to be done on the Sullivan smokestack did not receive any bids, so we will have to go out again with the request.

Councilor O'Hearne expressed his concern that the smokestack is dangerous and he asked about tearing it down.

Nancy Merrill, Planning and Development Director, thought it was important to bring in an engineer because this would include the stack, the foundation and the pumphouse. She has heard from some members of the community that they want to keep the stack. If the Council would like, the City can put out a request for demolition. Mr. MacLean suggested putting this on a future agenda.

Mr. MacLean noted that there is interest in doing a facilities tour. He hopes to do that as part of the budget process in order to look at CIP recommendations. He anticipates developing a tour schedule in May or June.

Mr. MacLean said regarding the City Fee Schedule that he is looking at bringing it forward during the budget process.

Ms. Richmond gave a brief update on the BS&A finance software conversion. They will do data extraction in May, and they will be onsite in May. She talked about using purchase cards in conjunction with BS&A. She also talked about invoices and that citizens could get invoices emailed to them, then they could pay online; stops having to manually process that. For the purchase cards, there would be no fees, and there is a rewards program. For Invoice Cloud and Point & Pay, there would probably be some fees. She said there are three people in the Finance Department working on this, in addition to the other parts of their jobs. This has been an over 10-year process. Claremont is working with the City of Lebanon on this.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to move forward with demolishing the Sullivan smokestack.

After some discussion, Councilors agreed more information was needed before making a decision.

Councilor Stone rescinded his motion and Assistant Mayor Matteau rescinded her second.

Mr. MacLean said if we can put this on the second agenda in March, we can advertise the item appropriately. There was consensus of the Council to put this on the second agenda in March.

CITIZEN'S FORUM

David Putnam, Ward 2, said that City facilities are part of the 2017 Master Plan and the roofs of this building have been a part of the CIP for five years. He urged the Council to consider from the CIP plan to be forwarded from the Planning Board, to make plans to do some serious work on these roofs.

OLD BUSINESS

None

NEW BUSINESS

Hazard Mitigation Update

The City's Hazard Mitigation Plan was recently updated in cooperation with Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC). Vickie Davis from UVLSRPC developed the update with assistance from the City's Public Works, Police, Fire, and Planning and Development. Though there are some updates in the new version, most of the previous content remains the same. The plan is required to be updated periodically and is a requirement to apply for many federally funded grants.

Fire Chief Bryan Burr introduced Ms. Davis. Ms. Davis said she worked with the Hazard Mitigation Committee. They had three public meetings in October and November and they updated a Hazard Mitigation Plan for the City. Updates are done every five years. The plan is required by the state to be eligible for certain grants. The plan has been submitted to the state, who has approved it subject to Council approval. Committee members were deForest Bearse, City Planner; Fire Chief Bryan Burr; Jeremy Clay, former Assistant Public Works Director; Police Chief Mark Chase; Steve Coombs, Chief Building Inspector; Alex Gleeson, Public Works Director; and Nancy Merrill, Planning and Development Director.

It was noted that none of the Councilors had received a copy of the Hazard Mitigation Plan that Ms. Davis was referencing.

A motion was made by Councilor Koloski and seconded by Councilor Stone to table this until we receive the information and put it on the next Council agenda (March 9).

Roll call vote:
Contois - yes

O'Hearne - no
Stone - yes
Matteau - no
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - no
Girard - yes
Motion carried 6-3.

Resolution 2022-19 Continuity of Operations (COOP) EMPG Grant Project – Public Hearing

WHEREAS the primary goal of developing a Continuity of Operations Plan is to ensure the protection of life and property during times of emergency and the City of Claremont is scheduled to update its COOP; and

WHEREAS the City would like approval to apply for, accept, and expend an award of the New Hampshire Homeland Security and Emergency Management Grant in the amount of five thousand five hundred dollars (\$5,500.00), with matching funds in the form of committee time, for the purpose of updating and reformatting the City's Continuity of Operations Plan to meet Federal Emergency Management Agency (FEMA) criteria; and

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$5,500.00 (to have no impact on the tax rate).

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

Chief Chase said this is to ask to accept and expend funds for this project. The Continuity of Operations (COOP) is to ensure the City's functions are operational during an event and shortly thereafter.

Mayor Girard opened the public hearing. No one spoke. He closed it.

A motion was made by Councilor O'Hearne and seconded by Councilor Koloski to adopt Resolution 2022-19 Continuity of Operations (COOP) EMPG Grant Project.

Councilor O'Hearne read the resolution into the record.

Roll call vote:
Contois - yes
O'Hearne - yes

Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

Resolution 2022-20 Avigation Easement Grant – Public Hearing

WHEREAS the City is undertaking a Phase 2 Airport Avigation Easement Project at the Claremont Municipal Airport (the “Airport”); and

WHEREAS the City has applied for a grant from the Federal Aviation Administration (the “FAA”) in the amount of \$85,000.00 to fund the Phase 2 Airport Avigation Easement Project at the Airport, said amount including local matching funds from the City in the amount of \$4,250.00; and

WHEREAS the City would like to accept and expend said grant funds; and

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG 02-24-2022) Phase 2 Airport Avigation Easement Project in the amount of \$85,000.00

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$85,000.00 with \$4,250.00, as the City’s share of the project, to be taken from the Airport Special Revenue Fund and the remaining from the FAA grant, SBG 02-24-2022 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to execute all actions and undertake all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said this is Phase 2 of the Airport Avigation Easement Project and this is for the remaining two properties.

Mayor Girard opened the public hearing. No one spoke. He closed it.

A motion was made by Councilor Mooshian and seconded by Councilor O’Hearne to adopt Resolution 2022-20 Avigation Easement Grant.

Councilor Mooshian read the resolution into the record.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Continuation of the Pleasant Street Project Discussion – For the purpose of receiving the Project Engineer's recommendation relative to certain “minor” modifications to the approved design/bid documents

Brian Colburn and Kevin McMahon, McFarland Johnson, joined the meeting via Zoom. Mr. Colburn showed a PowerPoint presentation, Rethink Pleasant Street Revitalization Project – Discussion on Potential Changes to the Design of the Pleasant Street Revitalization Project.

- Agenda
 - Parking dimensions on Pleasant Street
 - Traffic signal at Broad St. & Glidden St.
 - Truck Route around Pleasant Street
- Current Design
 - 15 ft wide travel lane, 17 ft angled parking
 - 8 ft furniture zone, includes 6 ft brick & 2-1 ft granite bands
 - Concrete sidewalk 9-10 ft wide
 - Concern last time was the 17 ft parking stall
- Design Change Option
 - Increase angled parking to 19 ft
 - Furniture zone – reduce from 8 ft to 7 ft
 - Maintain granite band closest to the road
 - 6 ft brick
 - Eliminate granite band on the back side of the brick
- Parking Dimension Changes
 - Pros
 - Parking stalls accommodate larger trucks
 - Fewer trucks “stick out” into lane
 - Accommodates Streetscape design
 - No changes to budget or schedule
 - Cons
 - Wider pavement could result in higher speeds
- Broad Street Traffic Signal
 - Merging area (dragstrip/raceway)

- Crosswalk location
 - Drivers cut-through the Post Office area
- Option 1 – Minor Changes
 - Adjust crosswalk location
 - Improve signage for merging
 - Changes to Post Office driveway to deter through traffic
- Broad Street Crosswalk Location
 - Move from the southern side of Glidden Street to other side of the intersection
 - Currently, it is a long crosswalk
 - Post Office – could extend the island on both sides and make the drive area narrower – would require coordination with the Post Office
- Option 2 – Capacity Changes
 - Adjust crosswalk location
 - Provide a single southbound lane
 - Eliminates merging of cars
 - Could extend queues into Opera House Square
 - More difficult to access parking on Broad Street
 - Changes to Post Office driveway to deter through traffic
- Option 3 – Change Pleasant Street to Northbound
 - Eliminates need for signal at Broad Street
 - Potential queuing into Opera House Square
 - Additional traffic on Broad Street by the high school
 - Trucks
- Proposed Southbound Traffic Pattern (Current)
- Optional Northbound Traffic Pattern
 - Trucks must go straight toward Opera House Square
 - Glidden would be one-way going easterly
 - Additional queuing into the square
 - Potential drawback
- Truck Route Around Pleasant Street
 - Confirmed with NHDOT that they are aware of the Truck Route
 - Truck Route signage at Pleasant Street can be enhanced
 - Local ordinances are required for enforcement

Councilors had a brief discussion about Options 1 and 3.

Mayor Girard invited people in the audience to speak.

Marco Leite, Sugar River Barbers, said the truck traffic in front of the high school is not safe. The width of the sidewalk could be an issue with the elderly and disabled; 30% of his clients are disabled. One-way traffic cuts the flow of traffic in half. Snow removal would close down Pleasant Street. Fire trucks parked there would close off the road. Most business delivery trucks have no place to park. He is in favor of widening the road and going back to two-way traffic.

Candace Crawford, Ward 2, offered her support for the project to continue as is. There were a lot of public hearings before this started. Anytime you have a change, it's hard for people to get used to it. Changing again would compound the problems. There is so much to be gained by this project. She thinks this will invigorate downtown. She urged to continue as originally planned.

Jonathan Nelson, Ward 1, said you need to ask who to give priority to, trucks or people coming downtown to spend time and money at small businesses. It would be safer to slow traffic even further. He suggested having raised crosswalks at the ends and middle, and placing a Stop sign half-way down.

Bonnie Miles, Ward 2, said she really likes the plan as is. She agreed with Mr. Nelson that the traffic should be slowed down. She has no problem backing out. If you change the route, it looks like the City doesn't know what it's doing. If you change the direction of Glidden Street, the entrance to Claremont Savings Bank would need to be reconfigured. She thinks this will look good when it is done.

Rita Quintey, Ward 2, said she doesn't feel safe backing out from an angled parking space. She would prefer parallel parking. When there is a snowstorm, vehicles park 2-3 feet away from the curb.

David Putnam, Ward 2, said the project is only half done, and all of the signage is not up. Option 1 is fair, but it's not the only solution. Widening the road 1 foot would help with backing out. The angled parking is how it was in the 1950s and 1960s. He suggested considering some features of Option 2 with Option 1 (i.e. crosswalk, adding 1 foot to the parking space). He talked about how nice it would be to have the outside dining.

Nancy Fowler, Ward 2, said she thinks it ought to go back as it was (two-way and parallel parking). This is poor town, and the City should concentrate on getting jobs in town.

Bob Lovett, Ward 2, said he is in favor of the Pleasant Street Project. At its August 26, 2020, meeting, the Council voted to make this project. Numerous public sessions were held, and a majority of the participants voted for this. There were lots of participants. The City has contracts and changes may cost major money. Major renovations may have to be funded by an increase in the tax rate. If there is a concern about slowing traffic, then elevate the pedestrian crosswalks. He hopes the Council will stay the course. Hundreds voted for this project.

Mike Sanborn, Ward 1, said he is in support of the project as is. He suggested the merge lane be changed to two lanes all the way down.

Cody Raymond, Ward 1, voiced her support to stay the course with the project as it is. Minor changes may be okay, but major changes would add confusion. She thinks the final project will be worth it. The parallel parking was not fully used. She suggested some clear signage be

added. Also, she reminded people that there is parking behind the buildings and there are entrances from the back.

Robert Porter, Ward 3 resident and representative for the Congregational Church on Pleasant Street and the bakery on Glidden Street, said that he would like to see the City stay the course. We are half way through the project. If we stay the course, he believes we will be pleased with the results.

Andy Lefreniere, Ward 3, said he is in support of the project. He is a property owner in the downtown. He thinks the current plan was well thought out. This project has led to investment downtown, and some of those projects will be very large. Several people made decisions based on this project going forward. He doesn't like Option 3; some parts of Options 1 & 2 may be considered.

Councilor Limoges said that he talked to people on Pleasant Street and most have not been positive about the project. He said that people want the street to go back to two-way.

A motion was made by Councilor Limoges and seconded by Councilor Stone to return Pleasant Street to two-way and to change the parking to parallel parking.

Assistant Mayor Matteau is opposed. The project is called Rethink Pleasant Street. People came out to the planning sessions, and some of the business owners did not participate.

Councilor Koloski is not in favor. People voted on the outcome. The public had multiple opportunities to participate.

Councilor Beliveau is not in favor of going back. Investors are coming because of the project.

Councilor Contois said that seven businesses reached out to him saying they want to go forward with the project as is. We have a bond, and goals have been established.

Councilor O'Hearne said the City is trying to get more pedestrian traffic downtown. The City has a housing shortage. The City can only go so far out and then you will need to go up. The City may need other parking besides the Parking Garage.

Roll call vote:

Contois - no

O'Hearne - no

Stone - yes

Matteau - no

Koloski - no

Limoges - yes

Beliveau - no

Mooshian - no

Girard - no
Motion failed 2-7.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Mooshian to change the crosswalk on Broad Street as was presented by the engineer. [Move from the southern side of Glidden Street to other side of the intersection.]

Roll call vote:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

A motion was made by Councilor Beliveau to add one foot to the parking spaces, add one foot to the roadway, and to take away one foot from each sidewalk. There was no second; motion died.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to eliminate the merging lane back to one lane on Broad Street heading south.

Councilor Beliveau said without the merge lane, traffic will stack up.

Councilor Koloski said he cannot support this because the traffic will back up. Over time, people will understand the merge, and with signage and striping, it will be better.

Councilor Mooshian said he cannot support this motion. He shares the concerns about the traffic backing up.

Councilor Stone said that if Pleasant Street were to be shut down, there will be traffic problems on other streets.

Assistant Mayor Matteau withdrew her motion and Councilor Limoges withdrew his second.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to extend the angle parking by two feet and to eliminate one foot granite pavers on each side of the road.

Councilor O'Hearne asked if the City would lose any parking spaces. Mr. Colburn said no.

Assistant Mayor Matteau said the need is to focus on slowing traffic.

Roll call vote:

Contois - no

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - no

Limoges - yes

Beliveau - yes

Mooshian - no

Girard - yes

Motion carried 6-3.

Regarding raised crosswalks/speed tables, Mr. MacLean said the City can look into the options.

North and Main Street Project Acceptance of Land

Ms. Merrill said funding for this was earmarked in 2004 for safety reasons. Some of these are temporary easements, and some are permanent. Four parcels are fee transfers. For the City parcel, it's the old Dimick's parcel. This motion was written by Attorney Shawn Tanguay. The City will come back to Council to accept the final layout.

A motion was made by Councilor Contois and seconded by Councilor Koloski

In conjunction with Federal and State agencies, the City is engaged in funding the relocation of the intersection at NH Route 12 and North Street. Consequently, the City will need to take ownership of certain property interest, either in the form of fee simple interest or easement rights, associated with the reconfiguration of North Street as part of the City's highway system. In addition, the State of New Hampshire requires certain ownership rights associated with the changes to NH Route 12, which is a State highway, in either the form of fee simple interest or easement rights. As a result, this Motion seeks to authorize the City, by and through the authority provided to the Claremont City Council within NH RSA 47:5, to accept ownership of these property rights and convey certain property rights in support of the above-mentioned project. Therefore, the approval of this Motion shall apply to these property transactions as between the City and the landowners, as identified below, as well as the City-owned property provided to the State as described by the following:

City's Acceptance of Property

<u>Landowner</u>	<u>Tax Map/Lot #</u>	<u>Property Interest</u>	<u>Size of Transfer</u>
Todd Osgood Construction, LLC	82-11-2	Fee Simple	1,300 sq. ft.
		Temporary Construction Easement	880 sq. ft.
Thurken 1, LLC	82-11-1	Fee Simple	22,150 sq. ft.
		Temporary Construction Easement	3,800 sq. ft.
Max/Joy Bergstrom	95-54	Fee Simple	140 sq. ft.
Cheryl Gagne	95-6	Fee Simple	125 sq. ft.
<u>Landowner</u>	<u>Tax Map/Lot #</u>	<u>Property Interest</u>	<u>Size of Transfer</u>

Melba Merrifield	95-14	Temporary Construction Easement	150 sq. ft.
Edward Morris	95-15	Temporary Construction Easement	660 sq. ft.
Susan Reed	95-16	Temporary Construction Easement	950 sq. ft.
Nancy Sanderson	95-23	Temporary Construction Easement	440 sq. ft.
		Drainage Easement	200 sq. ft.

Transfer of City Property to State of New Hampshire

<u>Landowner</u>	<u>Tax Map/Lot #</u>	<u>Property Interest</u>	<u>Size of Transfer</u>
City of Claremont	94-42	Fee Simple	9,150 sq. ft.
		Temporary Construction Easement	1,380 sq. ft.
		Drainage Easement	870 sq. ft.

Channel Easement

1,280 sq. ft.

The Claremont City Council hereby authorizes the City Manager or designees to negotiate, execute and undertake all such actions as may be required to acquire and/or convey the property rights, as identified within this Motion, consistent with the purposes of this project. No additional funds, of the City, will be necessary for these transfers aside from those previously approved by the Council as the City's financial portion of the NH Route 12/North Street intersection project.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Proposed Council Rule Change

Proposed Council Rule Change submitted by Assistant Mayor Matteau to Council at the February 9, 2022, Council meeting.

Existing wording, Council Rule 17:

- **17. - Voting.**

Every member, present when a question is put shall vote either "Aye" or "Nay", unless Council shall, for special reason, excuse him/her from voting. Application to be excused from voting must be made before the votes are called for. The member having briefly stated the reason for his/her request, the decision thereon shall be made without debate. The Mayor shall vote last and all votes on motions accepted by the Council shall be by roll call vote.

Proposed change:

Eliminate "and all votes on motions accepted by the Council shall be by roll call vote."

Submitted for consideration by Assistant Mayor Debora Matteau, 2-9-2022

Assistant Mayor Matteau read the proposed Council Rule change. She talked about not needing “all votes on motions accepted by the Council shall be by roll call vote,” because Rule 18 Demand for Roll Call is available.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to eliminate the wording that says "and all votes on motions accepted by the Council shall be by roll call vote."

Councilor Mooshian doesn’t support this Rule change.

Councilor Koloski said he likes the way we do it now. He doesn’t support this change.

Councilor Stone likes having the roll call votes. Maybe the Council minutes could be a “yea” or “nay” vote.

Councilor O’Hearne said because Rule 18 is available, there shouldn’t have to be a roll call for minutes or adjournment, however, anything dealing with money should have a roll call.

Mr. MacLean said this is titled Voting, but he thinks they are talking about if someone were to indicate that they did not want to vote on an issue for a special reason (i.e. conflict of interest), then the Council would sit in judgement of that particular question. Then, the Council would do a roll call vote whether or not to excuse the Councilor from voting, because all Councilors must vote. He believes under Council Rules that any Councilor can call for a roll call vote. Councilor Koloski and Assistant Mayor Matteau agreed with Mr. MacLean. Mr. MacLean said that if Council would like him to double check with legal on this, he can do that.

Assistant Mayor Matteau agreed this was poorly written.

Assistant Mayor Matteau withdrew her request for a Council Rule change and her motion. Councilor O’Hearne withdrew his second.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked if Council wanted to do a No Thru Truck ordinance for downtown, would Council ask the Policy Committee, or would it go through the Police Department. Mr. MacLean said he understands the Council wants him to look into truck route signs and to come back to the Council with the information. He will talk with the appropriate authorities. Councilor Stone recommended holding off sending this to the Policy Committee until Mr. MacLean comes back with that information. Councilor O’Hearne said in addition, the ordinance would have to change regarding making Pleasant Street a one-way street. Councilor Koloski said the Food Truck ordinance needs to be looked at as the two parking spaces are not available. Councilor Stone recommended holding off until the Pleasant Street Project is finished.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:35 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council